

MARTIN v SANCHEZ, et al

24CV47669

DEFENDANT EA FAMILY SERVICES' DEMURRER TO FAC

Plaintiff Caleb Martin ("Plaintiff") filed his Complaint arising out of allegations of sexual child abuse against Janine Ann Sanchez ("Sanchez"), Environmental Alternatives¹, EA Family Services ("EA Services") and Does 1-50 (collectively, "Defendants"). After the Court sustained an earlier demurrer, Plaintiff filed a First Amended Complaint on July 17, 2024. Now before the Court is a renewed demurrer filed by EA Services to the first cause of action for sexual abuse.

I. Facts

Plaintiff, while a minor of approximately 14 years of age, was placed by EA Services as a foster child into the home of Sanchez. Subsequently, Plaintiff claims that he was subjected to sexual abuse by Sanchez. Plaintiff contends that Sanchez coerced him into participating in the sexual conduct. On July 19, 2016, Sanchez was arrested for various felonies related to allegations of sexual abuse against Plaintiff. Plaintiff asserts that the alleged abuse resulted in mental, physical, and emotional pain and suffering.

Plaintiff has brought the instant action against moving Defendant EA Services under the cause of action titled "child sexual abuse." Plaintiff alleges that EA Services is a business that serves foster children and provides "background checks, health screening, provide pre-approved training and education of safety issues, educational and special needs, child abuse identification and prevention, discipline, and how to work with birth parents and placement so the child will thrive in the foster care environment." (FAC ¶ 4.) Plaintiff further alleges that EA Services was responsible for placing the Plaintiff in Sanchez's home where he was abused. (*Id.* ¶ 5.) Plaintiff also alleges that EA Services had an ongoing duty to ensure the safety of the children which it placed into foster homes. (*Id.* ¶ 7.) Plaintiff finally alleges that a result of the placement and abuse, he was damaged.

II. Legal Standard

“A demurrer tests the sufficiency of a complaint and admits all facts properly pleaded.” (*Setliff v. E.I. Du Pont de Nemours & Co.* (1995) 32 Cal. App. 4th 1525, 1533.) The court assumes the truth of the allegations asserted but does not assume the truth of “contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal. App. 4th 242, 247.) The court can further look at those facts that “reasonably can be inferred from those expressly pleaded, and matters of which judicial notice has been taken.” (*Fremont Indemnity Co.*, 148 Cal. App. 4th 100, 111.) In considering the demurrer, the court must accept the allegations set forth in the complaint as true. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591.)

III. Discussion

Civil causes of action for sexual abuse are allowable and have no statute of limitations as set forth in Code of Civil Procedure section 340.1. (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1225.) Section 340.1 applies to conduct that would be criminally prosecutable under various sections of the Penal Code, including those alleged by Plaintiff. (Complaint ¶ 8.) A civil cause of action for damages arising out of child sexual abuse can be brought against the perpetrator, and/or – as the case here – “against any person or entity who owed a duty of care to the plaintiff, if a wrongful or negligent act by that person or entity was a legal cause of the childhood sexual assault that resulted in the injury to the plaintiff.” (CCP Section 340.1(a)(2).)

Plaintiff is essentially bringing a cause of action for negligence against EA Services. To prevail in a negligence action, “a plaintiff must show the defendant owed a legal duty to her, the defendant breached that duty, and the breach proximately caused injury to the plaintiff.” (*Doe v. L.A. County Dep’t. of Children & Family Servs.* (2019) 37 Cal.App.5th 675, 682.) However, a “defendant does not owe a legal duty to protect against third party conduct, unless there exists a special relationship between the defendant and the plaintiff.” (*Ibid.*) In addition, the third-party’s conduct must have been – or should have been – known to the defendant. (*Ibid.*)

Here, reading the allegations in the FAC liberally, the Plaintiff alleges that EA Services was in the business of ensuring that foster children are placed in safe homes with families that have been background checked and trained/educated by EA Services. Plaintiff alleges that EA Services trained and then approved Sanchez as a foster parent.

Plaintiff alleges therefore that EA Services had a special relationship with Plaintiff of the sort that *could* give rise to a legal duty to protect against third-party conduct. Plaintiff further alleges that this obligation to protect extended throughout Plaintiff's placement.

The Court agrees that Plaintiff has clearly alleged some type of duty on the part of EA Services. However, the FAC does not contain any allegations of a breach of that duty. Plaintiff's own allegations are that EA Services conducted the requisite background check and training procedures. There are no allegations that EA Services knew or should have known that Sanchez intended to, or would, engage in illegal conduct. Nor are there any allegations suggesting that EA Services knew that its background checks and training were insufficient to afford protection to foster children.

Because the FAC does not contain sufficient allegations of a breach of duty on the part of EA Services, the demurrer is **SUSTAINED**, with twenty (20) days leave to amend. (The Court notes that while this tentative ruling was being prepared, plaintiff dismissed Defendant EA Family Services, without prejudice. The Court is issuing this tentative ruling to provide direction in the event plaintiff seeks to reinstate EA Family Services as a defendant in this action.)

The clerk shall provide notice of this ruling to the parties forthwith. In light of the dismissal of EA Family Services, no further formal Order is required.

RINAURO v STATE OF CALIFORNIA – EMPLOYMENT DEVELOPMENT DEPARTMENT

24CV47789

DEFENDANT’S DEMURRER

This is dispute involving unpaid tax assessments and an alleged settlement agreement regarding those assessments. Now before the Court is a demurrer filed by State of California Employment Development Department (“Defendant”) to the Complaint brought by Christopher Rinauro (“Plaintiff.”)

I. Factual and Procedural Background

Plaintiff owns and operates a tree trimming business within Calaveras County. (Complaint ¶ 12.) During the relevant time period, Plaintiff employed approximately 10 individuals. (*Ibid.*) Between 2012 and 2016, due to a bark beetle epidemic, Plaintiff had to add roughly three to five additional personnel to assist with the added business. (*Ibid.*) Plaintiff alleges that these individuals were independent contractors, set their own hours and schedule, and represented that they would pay their own taxes. (*Ibid.*) Plaintiff alleges that during the relevant time period, he paid all his employment taxes and that no unemployment claims were made. (*Id.* ¶ 13.)

In or around 2018, after a complaint from a competitor, Defendant opened an investigation into Plaintiff’s employment books. (Complaint ¶ 14.) During this investigation, Defendant allegedly found payments made to third parties which they interpreted to be for work performed and assessed Plaintiff excess income taxes, penalties and interest. (*Ibid.*) Plaintiff alleges most of these taxes were unjustified and that Defendant never interviewed the independent contractors. (*Ibid.*)

On April 3, 2018, Defendant asked the Calaveras County District Attorney to file criminal charges against Plaintiff alleging several counts of failing to file reports and making false statements on his tax forms. (Complaint ¶ 15.) The criminal matter (Case No. 18F7290) case was resolved for two misdemeanor counts. Defendant also, however, sought restitution in excess \$166,000. (*Ibid.*)